

Merchant Agreement

Effective 6 October 2026 · The Loyalty Loop

1. Scope and definitions

This Merchant Agreement applies in addition to our Terms of Service and governs your use of The Loyalty Loop to operate a digital loyalty programme for your business (the "Merchant Services"). By creating a business owner account, you agree to this Agreement on behalf of the business you represent ("you", "Merchant") and confirm that you have authority to do so. If there is a conflict between this Agreement and the Terms of Service about the Merchant Services, this Agreement prevails. Our Data Processing Addendum forms part of this Agreement.

"Members" means the customers who join your shop's loyalty programme. "Merchant Data" means the information you or your staff put into the Merchant Services, such as shop details, rewards and thresholds, and staff records.

2. What we provide

We provide shop profiles, loyalty progress and reward management, staff access, customer-code lookup, analytics and customer communications subject to member preferences. We are moving shops to cumulative spend rewards with a pound threshold and staff-recorded purchases. Legacy features remain until the shop is moved; only use features currently enabled in your dashboard.

We submit participating shops for Fidel card-linked earning, but enrolment alone does not mean automatic earning is active. Payment-network matching and location activation must succeed. Some payment providers use shared identifiers that prevent reliable matching; those shops use supported manual purchase entry instead.

We provide the Merchant Services with reasonable care and skill. We may update, improve or change features from time to time, and will give reasonable notice where a change materially reduces the Merchant Services you rely on. We do not promise that the Merchant Services will be uninterrupted or error-free, and we are not responsible for the third-party services (such as Fidel, payment networks and device or internet providers) that the Merchant Services depend on.

3. Your responsibilities

- Provide accurate information about your business, including your address, category and contact details, and keep it up to date.
- Honour the rewards and thresholds you configure for genuine, eligible customers.
- Set staff permissions responsibly, keep log-in details and staff PINs confidential, and revoke access promptly when a staff member leaves. You are responsible for activity under your accounts and your staff accounts.
- Only contact your members with promotional messages where they have not opted out, and comply with applicable marketing and electronic communications law (including the Privacy and Electronic Communications Regulations).
- Use customer data made available to you through the Service only to operate your loyalty programme, and in accordance with our Data Processing Addendum where you act as a data controller for your own members' loyalty data.

- Comply with all laws that apply to your business and your use of the Merchant Services, and do not use the Merchant Services in breach of our Acceptable Use Policy.
- Make sure you own, or have the right to use, the content you upload (such as your name and logo).

4. Fees

Any fees applicable to your use of the Merchant Services will be presented to you separately at sign-up or in your dashboard. Where no fee is shown, the current core Merchant Services are provided free of charge. We will give you reasonable advance notice before introducing or changing fees for your shop, and you may cancel before the change takes effect. Fees are stated exclusive of VAT, which is added where it applies.

5. No lock-in

You may deactivate or cancel your shop at any time from your dashboard, with no minimum term and no cancellation fee. Once deactivated, your shop will no longer be visible to customers and new stamps or rewards can no longer be issued; existing customer records are handled in accordance with our Privacy Notice and Data Processing Addendum.

6. Verification and compliance

We may ask you to submit proof-of-business documents to obtain a verified badge, and may review or request further information at any time to ensure shops on the platform are genuine and comply with applicable law. We may decline or revoke a verified badge, or suspend a shop, if we reasonably believe this Agreement or applicable law has been breached.

7. Branding and intellectual property

You keep ownership of your shop's name, logo and content you upload. You grant The Loyalty Loop a non-exclusive, worldwide, royalty-free licence to host and display this material to customers as part of operating the Service for as long as your shop is active. We and our licensors own the Merchant Services, the platform, its software and documentation. This Agreement does not transfer ownership to you, and you may not copy, reverse-engineer or resell any part of the Merchant Services.

If you send us feedback or suggestions, we may use them freely to improve the Merchant Services without payment or credit.

We may use aggregated and anonymised information about use of the Service, which does not identify you, your members or any individual, to operate, analyse and improve the Service.

8. Confidentiality

Each party will keep confidential any non-public information of the other that is marked confidential or that a reasonable person would understand to be confidential (such as business plans and non-public pricing), use it only to perform or receive the Merchant Services, and not disclose it except to staff, advisers and service providers who need to know and are bound by similar duties, or where the law requires. This does not apply to information that is or becomes public through no fault of the recipient, was already known to the recipient, was independently developed, or was lawfully received from a third party. Personal data is handled under our Privacy Notice and Data Processing Addendum.

9. Warranties and disclaimers

Each party confirms that it has authority to enter into this Agreement. You confirm that the information you give us is accurate and that you have the right to give us the Merchant Data and the permissions in section 14.

Except as stated in this Agreement, and to the fullest extent permitted by law, we give no other warranties or conditions, express or implied, including about uninterrupted operation, or that card-network matching will be successful at any given time. Nothing in this section excludes any warranty or condition that cannot lawfully be excluded.

10. Liability

Nothing in this Agreement limits or excludes either party's liability for death or personal injury caused by negligence, fraud or fraudulent misrepresentation, or anything else that cannot be limited or excluded by law. Subject to that, The Loyalty Loop is not responsible for disputes between you and your customers regarding rewards, product quality or service at your shop.

Subject to the paragraph above, and to the extent permitted by law: (a) neither party is liable for loss of profit, goodwill or revenue, or for indirect or consequential loss; and (b) our total liability to you arising from this Agreement in any 12-month period is limited to the greater of £100 and the fees you have paid us for the Merchant Services in the twelve months before the claim arose.

11. Indemnity

You will compensate The Loyalty Loop for losses, damages and reasonable costs arising from a third-party claim caused by: (a) content you upload infringing someone's rights; (b) your breach of law or of section 14; or (c) your misuse of member data. We will tell you promptly of any claim, let you control its defence (with our reasonable help at your cost) and not settle it without your consent, which will not be unreasonably withheld.

12. Term and termination

This Agreement starts when you accept it and continues until ended. Either party may end it at any time as described in section 5. We may also suspend or terminate your access immediately if you materially breach this Agreement, our Terms of Service or applicable law, or if we are required to by law or a payment-network or card-linking provider. Sections that by their nature should continue (including confidentiality, liability, indemnity and governing law) survive termination.

13. Changes, notices and general

- **Changes.** We may update this Agreement for legal, regulatory or service reasons. We will give reasonable notice of material changes, and you may cancel under section 5 if you do not agree.
- **Notices.** We may give notices by email or in your dashboard. You may give notice to developer@the-loyalty-loop.com.
- **Entire agreement.** This Agreement, with the Terms of Service, Data Processing Addendum, Acceptable Use Policy and Privacy Notice, is the whole agreement about the Merchant Services. If part is invalid, the rest continues. Failure to enforce a right is not a waiver. Neither party may transfer this Agreement without the other's consent, except that we may transfer it to a successor to the Service. Neither party is liable for failure caused by events beyond its reasonable control.

- Third-party rights. No one other than the parties may enforce this Agreement under the Contracts (Rights of Third Parties) Act 1999.
- Governing law. This Agreement is governed by the laws of England and Wales, and the courts of England and Wales have exclusive jurisdiction.
- Contact. Questions about this Agreement can be sent to developer@the-loyalty-loop.com.

14. Fidel merchant enrolment and permission

By accepting this Agreement on behalf of a shop, you authorise The Loyalty Loop to submit the shop and its locations to Fidel API for card-linked rewards and to declare your consent to that enrolment. You confirm you have authority to give this permission for the business and each submitted location. We may share the business name, address, location and contact details, payment provider and merchant identifiers you supply with Fidel and the relevant card networks for matching eligible transactions.

This permission covers matching purchases and refunds made by shoppers who separately consent to link their cards. It does not authorise collection of every customer's transactions, give you their full card details or replace shopper consent. Existing merchants must receive and accept this updated enrolment permission before we declare their consent to Fidel.

Keep location and payment-provider details accurate and tell us if they change. Do not submit identifiers for another business or locations you do not control. Activation timing and card-network coverage are not guaranteed. You may request removal from card-linked participation through support; we will coordinate removal and explain any pending reconciliation.

Only record genuine eligible purchases manually. Do not credit a payment already credited automatically. For a linked-card customer at an active card-linked shop, manual entries are for confirmed cash or unlinked-card payments, limited to three per customer per shop per day and at least 30 minutes apart when this feature is enabled. Honour valid rewards and assist with disputed purchases and refunds.

About this document

Adapted from open legal templates published by General Legal, PC (<https://github.com/General-Legal/legal-templates>, CC0 1.0) and tailored to the law of England and Wales and to how The Loyalty Loop works. The original templates are general reference material only and are not legal advice; General Legal has not reviewed this version.